these alliances contributed to the rise of capitalism, which is still a visible feature of the Westphalian nation-state system, where those with capital work with those in power to preserve and advance ‘national interest’. Critically, there is a demonstrable nexus between the Westphalian State system and the ‘standard of civilisation’ as set by international law, which needs to be understood in order to appreciate its specific local manifestations in the political thought of former European colonies.

The Coloniality of ‘Civilised Nations’ under International Law: A Westphalian Legacy

The legacy of the Peace of Westphalia was not limited to the creation of nation-states but also extended to universalisation of the Westphalian or European experience through the instrumentality of ‘international law’ using the ‘standard of civilisation’ as a legal benchmark to judge societies. This is evident from Articles 9 and 38(1) of the Statute of the International Court of Justice which was established in 1945, that is, almost three centuries after the Peace of Westphalia. The said provisions read as under[21]:

> Article 9: At every election, the electors shall bear in mind not only that the persons to be elected should individually possess the qualifications required, but also that in the body as a whole the representation of the *main forms of civilization* and of the principal legal systems of the world should be assured.
>
> Article 38: 1. The Court, whose function is to decide in accordance with international law such disputes as are submitted to it, shall apply:
> a. international conventions, whether general or particular, establishing rules expressly recognized by the contesting states;
> b. international custom, as evidence of a general practice accepted as law;
> c. the general principles of law recognized by *civilized nations*;
> d. subject to the provisions of Article 59, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law.
> 2. This provision shall not prejudice the power of the Court to decide a case ex aequo et bono, if the parties agree thereto [emphases added].